

Deliberation SAN-2023-021 of December 27, 2023

National Commission for Information Technology and Liberties

Nature of the deliberation: Sanction

Legal status: In force

Date of publication on Légifrance: Tuesday, January 23, 2024

Deliberation of the restricted formation No. SAN-2023-021 of December 27, 2023, concerning the company AMAZON FRANCE LOGISTIQUE

The National Commission for Information Technology and Liberties, convened in its restricted formation composed of Mr. Alexandre LINDEN, President, Mr. Philippe-Pierre CABOURDIN, Vice-President, Ms. Christine MAUGÜÉ, and Mr. Alain DRU, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of personal data and the free movement of such data (hereinafter "the GDPR" or "the Regulation");

Considering Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms, notably its Articles 20 and following;

Considering Decree No. 2019-536 of May 29, 2019, amended, taken for the application of Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms;

Considering Deliberation No. 2013-175 of July 4, 2013, adopting the internal regulations of the National Commission for Information Technology and Liberties;

Considering the referral No. [...] ;

Considering Decision No. 2019-187C of September 26, 2019, of the President of the National Commission for Information Technology and Liberties, charging the Secretary-General to carry out or have carried out a verification mission of the personal data processing implemented for the company AMAZON FRANCE LOGISTIQUE (hereinafter "the company" or "AFL") or on its behalf;

Considering the decision of the President of the National Commission for Information Technology and Liberties designating a rapporteur before the restricted formation, dated January 28, 2021;

Considering the report of Mr. François PELLEGRINI, rapporteur commissioner, notified to the company AFL on April 4, 2022;

Considering the written observations submitted by the company AFL on June 20, 2022;

Considering the hearing of the company AFL on November 9, 2022;

Considering the rapporteur's response to the company's observations, notified on December 6, 2022, to the company AFL;

Considering the written observations submitted by the company AFL on May 23, 2023;

Considering the letter of September 22, 2023, addressed by the company AFL to the President of the restricted formation;

Considering the other documents in the file;

Present at the meeting of the restricted formation on September 14, 2023:

- Mr. François PELLEGRINI, commissioner, heard in his report;

As representatives of the company AFL:

- [...] ;

- [...] ;

- [...] ;

- [...] ;

- [...] ;

- [...] ;

- [...] ;

- [...] ;

The company AFL having spoken last;

The restricted formation adopted the following decision:

I. Facts and Procedure

1. The company AFL, a simplified joint-stock company registered in the Trade and Companies Register on January 3, 2000, is located at 67 Boulevard du Général Leclerc in Clichy (92110). Its revenue amounted to 1.135 billion euros in 2021, with a net profit of 58.9 million euros.
2. The company AFL is directly owned by Amazon EU SARL located in Luxembourg, which is itself 100% owned by Amazon.com Inc., located in the United States.
3. The company provides logistics support services as part of its parcel distribution activity in France. It manages large distribution centers in France, where it receives, stores items, and prepares parcels for delivery. In November 2019, the company had approximately 6,200 employees on permanent contracts. For the year 2019, it had utilized 21,582 temporary workers.
4. In November 2019, pursuant to Decision No. 2019-187C of the President of the Commission dated September 26, 2019, several on-site inspection missions were conducted in the administrative premises occupied by several French entities of Amazon and within the company. The first two inspection missions, conducted on November 5 and 6, 2019, allowed the...
of the CNIL to understand the processing of personal data implemented by the Amazon group entities in France concerning its employees. The last three inspection missions on November 13, 14, and 19, 2019, conducted within the warehouses of Lauwin-Planque and Montélimar, focused on the processing carried out by the company AFL, namely, the processing related to monitoring employee activity as well as the video surveillance systems implemented by the company. These missions resulted in the establishment of reports no. 2019-187.1, 2019-187.2, 2019-187.4, 2019-187.5, and 2019-187.6.
5. Following the on-site inspections, a written instruction continued, and numerous exchanges took place between the CNIL services and the company from November 2019 to January 2021.
6. For the purpose of investigating these elements, the President of the Commission appointed Mr. François PELLEGRINI as the rapporteur on January 28, 2021, based on Article 22 of Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms (hereinafter "the amended Law of January 6, 1978" or "the Data Protection and Freedoms Law").
7. At the conclusion of his investigation, the rapporteur notified the company on April 4, 2022, of a report detailing the breaches of Articles 5-1-a), 5-1-c), 6, 12, 13, and 32 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter "the Regulation" or "the GDPR") that he deemed constituted in this case. This report proposed that the restricted formation impose an administrative fine on the company. It also proposed that this decision be made public but that it would no longer be possible to identify the company by name after a period of two years from its publication.
8. On June 20, 2022, the company submitted its observations in response to the sanction report.
9. On November 9, 2022, the company was heard at its request to provide clarifications on the data processing implemented concerning its employees. This hearing resulted in the establishment of a report to which the company made comments that were transmitted to the Commission and the rapporteur on November 14, 2022. The company also sent the rapporteur, by email on November 16, 2022, responses to the questions listed in the hearing report.
10. The rapporteur responded to the company's observations on December 6, 2022.
11. On May 23, 2023, the company submitted new observations in response to those of the rapporteur.
12. By letter dated July 20, 2023, the rapporteur informed the company and the president of the restricted formation of the closure of the investigation.
13. On July 24, 2023, the president of the restricted formation sent the company a summons to the session of the restricted formation on September 14, 2023.
14. The rapporteur and the company presented oral observations during this session.

II. Reasons for the Decision

A. On the complaint regarding the irregularity of the session

15. During the hearing before the restricted formation, the president of the restricted formation, in accordance with Article 13 of the CNIL's internal regulations, requested the hearing of an agent who participated in the inspections. Since all agents who participated in the inspections had left the Commission's services, the floor was given to [...], an agent who participated in part of the inspections conducted within Amazon distribution centers in France.

16. The company argues that a procedural irregularity would arise from the hearing of a CNIL agent, questioned about facts he may have observed during the series of inspections carried out in November 2019 within Amazon entities in France, as this agent did not participate in the inspections conducted within the company AFL. It points out that this agent only participated in the inspections within the administrative premises occupied by several entities.

French entities of Amazon and in the warehouse of another company in the group, [...]. 17. The restricted formation notes that the agent heard, an information systems auditor, indicated that he considered the tools and methods for monitoring employee activity within other French entities of Amazon to be the same as those within the company AFL. Furthermore, the agent's intervention did not provide any new information regarding the processes implemented in warehouses, and this decision is not based on any element indicated by this agent. 18. Consequently, the complaint regarding the irregularity of the meeting must, in any case, be dismissed. B. On the presentation of the processes implemented using scanners and their purposes 1. On the processing of individual indicators related to work quality, productivity, and periods of inactivity 19. Employees working within the company's warehouses are responsible, on the one hand, for receiving and storing items from suppliers (inventory) and, on the other hand, for picking and packaging these items for shipment to customers as part of fulfilling their orders. To do this, they are assigned to positions corresponding to the relevant activities ("receiving," "storing," "picking," and "packaging"). These positions largely correspond, according to Amazon's terminology, to "direct processes" or "direct tasks," meaning tasks on which the volume of production can be measured using scanners that employees are equipped with. The scanners are small devices with a screen that allows the employee to identify themselves and receive instructions, as well as a barcode reader that enables them to scan the labels of the items they handle, or the locations where they store or pick the items. Employees may also be assigned to "indirect tasks," which are not or not entirely performed using the scanners (for example, transporting bins to picking areas, identifying process errors, or training new employees on basic processes). Employees may be required to occupy different positions during the same workday. 20. Using the scanners, the company continuously collects data related to the activity of employees assigned to direct tasks: the scans performed by each employee allow not only for tracking the proper progression of each item throughout the various stages of preparation and distribution but also for measuring the employee's activity by counting the number of units they handle over a given period, accounting for the periods of time during which they handle no units, and analyzing the level of quality with which these units are processed, according to detailed criteria. The use of scanners also allows for identifying errors or probabilities of error. 21. All of this activity data collected continuously using the scanners is associated with the identity of the employee in the form of productivity, quality, and inactivity indicators. A very large portion of this data thus constitutes personal data. These indicators are accessible within activity tracking software tools. It follows from the case documents that the term indicator refers, in Amazon's terminology, to different forms under which the data appears in the tools: it thus encompasses the raw data collected and the statistics derived from it continuously (as applicable, hourly, daily or semi-daily, weekly, for example: X products processed in the last hour; X errors made over half a day; X errors made over a week). Furthermore, the company also uses the term indicator to refer to specific types of indicators, divided into the three categories described below. 22. The company uses 43 "quality indicators" that correspond to the "actions of employees likely to lead to quality errors," such as storing an item in a location other than the recommended one or scanning items too quickly. These indicators allow for the reporting of probable or confirmed errors by the employee in the process of handling items. 23. The company also

produces indicators related to the productivity of each employee, which it distinguishes from "quality indicators" and which include, in particular, the number of items processed per hour, the most recent scans performed and their exact time, the type of item, its size, and its quantity. 24. Finally, the company processes indicators intended to monitor employee interruptions during their working time on direct tasks. Thus, the fact that no data is received by the scanner for a certain period is represented by various "indicators" in the tools. In particular, the "Inferred time" indicator (inferred inactivity time of a scanner), collected by default after ten consecutive minutes of inactivity of a scanner, can correspond to several situations, including "idle time," which is a period of inactivity without apparent justification. Another indicator records any "latency time of less than ten minutes at critical moments of the day," namely at the beginning and end of the work session as well as before and after breaks. 25. It should be noted that while the company refers to all data as "indicators," the restricted formation will sometimes distinguish, in this decision, between raw data and other indicators, statistics, which are calculated from this raw data. 26. It is specified that indirect tasks are not subject to as fine a monitoring as direct tasks. 27. This decision concerns the processing as described in all the company's warehouses where they are operated in France, as it appears from the documents in the file that these are processes defined for all of France. In contrast, the video surveillance processes also in question are only related to the warehouses in Lauwin-Planque and Montélimar. 2. On the periodicity of the processing of indicators and their accessibility in the tools 28. The restricted formation notes that, firstly, the three categories of indicators processed by the company (quality, productivity, periods of inactivity) are reported in real-time, for each employee, within the activity tracking tools available to supervisors. Thus, they have access, in particular and for each employee they supervise, to the latest errors made, the time of each scan performed, the number of items processed during the last hour, the details of the employee's working time on a given process, and any interruption time of their scanner. 29. Secondly, all of these indicators related to the activity of each employee are retained in the tools for 31 days and can thus be consulted, both via raw data and in the form of statistics, for example over an hour or half a day. 30. Thirdly and finally, weekly performance reports are established for each employee based on the continuously collected indicators. They contain weekly, daily, and hourly statistics regarding compliance with quality procedures and productivity as well as the raw data related to quality errors. Finally, idle times, which do not appear in these performance reports, are nevertheless accounted for each week and are sometimes the reason for sending awareness-raising letters. 31. The activity tracking tools identified in the context of the procedure are as follows: - [...] allows access to the indicators.

nominative indicators of employee productivity, including the detail of their working time on the same process. [...] also allows for tracking aggregated indicators (overall productivity of a site by type of activity). This data is accessible in real-time and for the last 31 days. - [...] is used to monitor the quality indicators associated with the direct tasks performed by employees. It also allows access to aggregated quality indicators (by category of error or by position, for example). This data is accessible in real-time and for the last 31 days. - [...] allows for consulting the details of the tasks performed by the employee (including their inactive times). This detail is accessible in real-time and for the last 31 days. - [...] is a work supervision tool that includes, in particular, [...], [...] and [...]. - [...] provides each employee with statistics on quality and productivity (by week, by day, or by hour) and the raw data concerning quality errors.

3. On the purposes of processing nominative indicators

32. The company indicates that the processing of indicators pursues purposes of quality assurance and safety, warehouse management and their workload (including for the real-time reassignment of employees), work planning, employee evaluation, coaching (or support) and individual training as well as management of the employee's obligations regarding compliance with working time. It specifies that the three categories of indicators are not all processed together for all purposes.

33. The rapporteur believes that several of the purposes put forward by the company cover very similar realities and, consequently, groups them into two sets, namely, on the one hand, real-time order management and, on the other hand, work planning and performance evaluation in a broad sense.

34. In this regard, the restricted formation notes that the first set of purposes defined by the rapporteur, related to real-time order management in the warehouse, encompasses the issues of inventory management (receiving and storage) and orders (picking, packing, shipping) while respecting quality and safety requirements. The company emphasizes that these processes involve identifying any anomalies as quickly as possible, providing advice and real-time support to employees (coaching), and sometimes reallocating them in real-time. It considers that this grouping of issues related to the real-time management of inventory, orders, and, by extension, the employees who handle them, is relevant. It finally emphasizes that while this purpose relates to real-time management during work in the warehouses, it relies both on real-time data corresponding to the current working day and on historical data from the past 31 days.

35. The restricted formation observes that the second set of purposes encompasses all uses of data that do not occur in real-time during the inventory and order management processes. This relates, on the one hand, to ex ante work planning, which consists notably of deciding on employee assignments for a working day based on their past performances, and, on the other hand, to broad ex post performance evaluation, which includes monitoring working time, weekly evaluations, and individual training of employees. It believes that the grouping of this second set of purposes, which utilize all performance evaluation data of the employee to make decisions that do not concern the real-time management of operational processes, is relevant for the examination of the case. It further notes that this second set of purposes, in contrast to the

****premier****, primarily relies on past data, except regarding the purpose related to the monitoring of working time, which is conducted both for the past and through real-time access to the processed indicators.

36. Consequently, the restricted panel considers that it is appropriate to follow the grouping of purposes carried out by the rapporteur within the two identified sets.

****C. On the quality of the company regarding the processing in question****

37. According to Article 4 (7) of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing."

38. The rapporteur considers that the company AFL acts as the data controller in question, as it determines the purposes and means of processing the performance data of its employees through scanners, as well as through video surveillance processing.

39. The company shares the rapporteur's analysis on this point.

40. The restricted panel emphasizes that the processing implemented by the company for the purposes of monitoring activity and evaluating the performance of its employees is related to human resources management and is thus, essentially, carried out on behalf of the said company as the beneficiary of the work provided by its employees. The restricted panel further notes that while the processes for managing employees (recruitment, dismissal) are based on a common framework for the entities of the Amazon group, they are tailored and operated at the national level and in compliance with each national legislation; moreover, these are "subject to local adaptations, decided autonomously by the company." Therefore, the restricted panel considers that the company is autonomous in the individual management of its employees, just as it is free to locally adapt the criteria developed at the group level to evaluate the performance of employees working in its warehouses.

41. Regarding the video surveillance processing implemented by the company in its warehouses in Lauwin-Planque and Montélimar, the restricted panel notes that the guide concerning the legal framework for the installation of video surveillance cameras in the premises of the Amazon group, established for the European area and containing specifications by country, provides that each company in the group decides, taking into account the legal framework, on the installation of these surveillance cameras for the legitimate purposes it determines.

42. It follows from the above that the company AFL acts as the data controller for the processing of

activity monitoring and performance evaluation data of its employees through scanners, as well as for video surveillance processing.

43. It is therefore up to the restricted panel to examine, in light of this quality, the grievances raised by the rapporteur against the company.

****D. On the competence of the CNIL****

44. According to Article 55.1 of the GDPR, "[e]ach supervisory authority shall be competent to perform the tasks and exercise the powers conferred on it in accordance with this Regulation within the territory of the Member State of which it is established."

45. Article 4 (23) defines cross-border processing as: "a) processing of personal data which takes place in the Union in the context of the activities of establishments in several Member States of a controller or a processor when the controller or the processor is established in several Member States; or b) processing of personal data which takes place in the Union in the context of the activities of a single establishment of a controller or a processor, but which significantly affects or is likely to significantly affect data subjects in several Member States."

46. Therefore, the restricted panel...

considered that the CNIL is competent to oversee the processing operations in question, which do not have a cross-border character within the meaning of Article 4 (23) of the aforementioned GDPR. 47. In accordance with Article 55.1 of the GDPR, the restricted formation considers that the CNIL is competent to initiate sanction procedures regarding the processing of personal data carried out by the company within the scope of the GDPR, provided that these processing operations fall under its territorial competence. 48. In this regard, the restricted formation first notes that the processing of personal data of employees is carried out within the framework of the activities of an establishment of a data controller on the territory of the EU as defined in Article 3 of the GDPR. Indeed, the processing of personal data of employees is implemented within the activities of the company AFL, which has its registered office in France. 49. Furthermore, the restricted formation notes that the processing operations in question are carried out within the framework of the activities of the company AFL and that they affect or are likely to affect exclusively the employees working in the company's warehouses located in France. Therefore, they do not have a cross-border character within the meaning of Article 4 (23) of the GDPR, and the cooperation procedure between supervisory authorities provided for in Chapter VII of the GDPR is therefore not applicable in this case. 50. This analysis is not contested by the company. 51. Consequently, the restricted formation considers that the CNIL is competent to oversee the processing operations in question. E. On the breaches related to the processing of activity tracking data and employee performance evaluation 1. On the applicable legal framework 52. Firstly, Article 5.1.c) of the GDPR states that personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization)." It follows from these provisions that it is illegal to process personal data of employees for certain purposes if those purposes can be achieved without resorting to such processing. 53. Secondly, on the one hand, under Article 6.1.f) of the GDPR, "processing is lawful only if and to the extent that at least one of the following conditions is met: (...) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject override those interests." 54. Recital 47 of the GDPR specifies that "[l]egitimate interests of a data controller [...] may constitute a legal basis for processing, unless the interests or fundamental rights and freedoms of the data subject override those interests, taking into account the reasonable expectations of the data subjects based on their relationship with the data controller. [...] In any case, the existence of a legitimate interest should be subject to careful assessment, in particular to determine whether a data subject can reasonably expect, at the time and in the context of the collection of personal data, that their data will be processed for a specific purpose. [...]" 55. In its Opinion 06/2014 on the notion of legitimate interest pursued by the data controller within the meaning of Article 7 of Directive 95/46/EC, adopted on April 9, 2014, the Article 29 Working Party (known as "G29," now the European Data Protection Board - EDPB) emphasized that a broad interpretation should be given to the notions of "interests" and "rights," in the sense that "all relevant

interests of the data subject should be taken into account." The G29 also... specified that when assessing the impact of the processing, "in addition to the negative consequences that may be specifically anticipated, moral repercussions must also be taken into account, such as irritation, fear, and distress that may result from the loss of control exercised by the individual concerned over their personal data, or from the discovery of abusive use [...] of this information [...]. [...]. The term 'impact,' as used in this notice, covers all possible (potential or actual) consequences of data processing." 56. Finally, Recital 75 of the GDPR provides clarifications on the risks to the rights and freedoms of natural persons that may be induced by certain processing activities, the degree of severity and probability of which varies, and which may result in physical, material damage or moral harm. Among these risks, the recital particularly mentions those resulting from processing that targets vulnerable natural persons and/or involves a large volume of data. 57. The restricted panel notes that given the nature of the processing in question, the legal bases provided by the provisions of Article 6.1 b), c), d), and e) of the GDPR, related to the performance of a contract, compliance with a legal obligation, safeguarding the vital interests of the individual concerned or another natural person, and the performance of a task carried out in the public interest, do not apply. It is therefore up to the restricted panel to examine whether the company can invoke its legitimate interest to proceed with the processing in question, this legal basis being the only one that can be mobilized. 58. According to Article L. 1121-1 of the Labor Code: "No one may impose restrictions on the rights of individuals and on individual and collective freedoms that are not justified by the nature of the task to be accomplished nor proportionate to the intended purpose." The protected rights and freedoms include, in particular, the right to privacy and personal life, the protection of personal data, and the right to the protection of one's physical and mental integrity. It follows from consistent case law of the Court of Cassation that while the employer has the right to monitor its employees, it must do so by means that are proportionate to the objectives pursued (see, for example, Cass. Soc., June 23, 2021, No. 19-13.856). 59. It follows from all the aforementioned provisions that the processing of personal data such as that implemented concerning the employees or temporary workers of the company in the context of managing its distribution centers can only be based, for the application of Article 6 of the GDPR, on the legal basis of legitimate interest, provided that it does not disproportionately infringe upon the rights, freedoms, and interests of the employees. 2. On the breaches related to the purpose of managing stock and orders in real-time in the warehouse: receiving items, storing inventory, preparing orders, shipping parcels, including coaching employees and their reassignment. 60. As a preliminary point, the restricted panel notes that the company claims it manages processes of extreme complexity since, to provide each of its clients with an optimal shopping experience, it receives, quality controls, stores, picks, packs, sorts, prepares, and ships approximately [...] and employs a large number of employees (4,372 employees working at the Lauwin-Planque site in 2019). The daily preparation and shipping of these millions of items of various natures must be carried out within the timeframes corresponding to the expectations of the company's clients and, for Amazon Prime clients, to the service they have specifically paid for, such as same-day delivery. The company asserts that its employees are at the heart of these operations and that the automated processing...

document est nécessaire pour garantir l'efficacité opérationnelle et la satisfaction des clients. Elle soutient que l'indicateur Stow Machine Gun permet d'identifier les performances individuelles et d'optimiser les processus de travail. Cependant, le rapporteur maintient que cette collecte de données, bien qu'elle puisse avoir des objectifs opérationnels, empiète sur la vie privée des salariés et constitue une forme de surveillance excessive qui n'est pas justifiée par les besoins de l'entreprise.

2.1.2. Sur le traitement des temps d'inactivité (idle times)

69. Le rapporteur souligne que le traitement des temps d'inactivité, qui mesure les périodes durant lesquelles un salarié n'est pas engagé dans une tâche productive, pose également problème. Il estime que cette donnée, bien qu'elle puisse être utilisée pour améliorer l'efficacité, peut également être interprétée comme une forme de contrôle sur les salariés, ce qui pourrait nuire à leur bien-être et à leur dignité au travail.

2.1.3. Sur le traitement des temps de latence inférieurs à dix minutes

70. Enfin, le rapporteur aborde le traitement des temps de latence inférieurs à dix minutes, qui sont également considérés comme une forme de surveillance excessive. Il argue que cette mesure ne tient pas compte des réalités du travail en entrepôt, où des pauses courtes peuvent être nécessaires pour des raisons de santé et de sécurité. Le rapporteur conclut que le traitement de ces données constitue une atteinte disproportionnée aux droits des salariés.

2.2. Conclusion sur l'illicéité du traitement des indicateurs

71. En résumé, le rapporteur conclut que le traitement des indicateurs Stow Machine Gun, des temps d'inactivité et des temps de latence inférieurs à dix minutes constitue une violation des droits des salariés en matière de protection des données personnelles, en raison de la surveillance excessive qu'il implique. Il recommande que la société reconsidère ses pratiques de collecte et de traitement des données afin de respecter les exigences du RGPD et de protéger les droits des salariés.

3. Recommandations

72. Le rapporteur recommande que la société mette en place des mesures pour garantir que le traitement des données personnelles des salariés soit conforme au RGPD. Cela inclut la limitation de la collecte de données à ce qui est strictement nécessaire pour les opérations, la mise en œuvre de politiques de transparence concernant le traitement des données, et la formation des employés sur leurs droits en matière de protection des données.

73. En outre, il est recommandé que la société établisse des mécanismes de contrôle pour s'assurer que les données collectées ne soient pas utilisées de manière à porter atteinte à la vie privée des salariés et que des évaluations d'impact sur la protection des données soient réalisées pour toute nouvelle mesure de collecte de données.

indicator is based on its legitimate interest in ensuring safety and quality in its warehouses. It indicates that the process of storing items requires the employee to perform several actions (scanning the item, scanning the location, etc.) and that if an interval as short as 1.25 seconds is reached during the successive storage of several items, this would almost systematically indicate a quality error, which could create a risk for safety or inventory errors. 69. In this regard, the restricted training notes that the company's interest, as an employer, in ensuring the quality and safety of its processes in its logistics centers, both for the customer and the employee, constitutes a legitimate interest within the meaning of Article 6.1. f) of the GDPR. 70. In this instance, the restricted training does not dispute that the Stow Machine Gun indicator allows for ensuring that excessively rapid sequences of scans do not lead to errors. 71. However, the company's interest in ensuring safety and quality in its logistics centers must be balanced against the interests or fundamental rights and freedoms of the data subjects, taking into account their reasonable expectations based on their relationship with the data controller, in accordance with Article 6.1.f) of the GDPR, read in light of Recital 47 and the aforementioned opinion on the notion of legitimate interest. 72. In this case, the restricted training observes that the collection of the Stow Machine Gun indicator effectively amounts to monitoring the speed of the employee's actions in each of the gestures they perform on a direct task, associating an error indicator each time this speed is below 1.25 seconds. However, the restricted training notes that this information reveals the employee's behavior in how they execute their direct tasks and is likely to exert continuous surveillance over the time associated with each of their actions on direct tasks, with a measurement on the order of seconds. It therefore considers that this indicator has a significant intrusive character and that its processing is likely to have negative moral repercussions on the employee, which may result from this continuous monitoring of their activity on direct tasks. The restricted training also notes that the processing of this indicator concerns a large number of people, as it targets all employees working in its warehouses. 73. Furthermore, the restricted training considers that such precise monitoring exceeds the reasonable expectations of employees who, while they may expect, as employees of the company, that their work will be subject to some level of oversight, cannot reasonably expect that their actions performed with the scanners will be monitored to the exact second. 74. Consequently, the restricted training considers that the processing of this indicator exceeds what is necessary for the legitimate interests of the company in ensuring quality and safety in its logistics centers, as it excessively infringes upon the rights and interests of employees working within the

warehouses—particularly their rights to privacy and personal life, as well as their right to working conditions that respect their health and safety. 75. As a result, the restricted training considers that the processing of the Stow Machine Gun indicator linked to the identity of the employee is not based on any legal basis, in violation of Article 6 of the GDPR. 76. The restricted training notes that in its latest written observations, the company announced the imminent cessation of the processing of the Stow Machine Gun indicator. However, it notes that this measure is not effective as of the date of the hearing and that it cannot, in any case, exempt the company from its liability for the past. 2.1.2. On the processing of idle times and

latency times of less than ten minutes. 77. The indicators whose processing is examined in this subsection are two indicators related to periods of inactivity collected via scanners, namely idle times, qualified from the inferred time that records any latency time of a scanner exceeding ten minutes and the latency times of less than ten minutes of employees assigned to a direct task, whether they are accessible in real-time or over the last 31 days. Idle time refers to periods of more than ten minutes of inactivity on a direct task without apparent justification, and the latency time of less than ten minutes measures, as its name indicates, times of less than ten minutes "at critical moments of the day," namely at the beginning and end of a work session as well as before and after breaks. 78. The rapporteur notes, on the one hand, that it emerges from the investigations that the company processes idle times, which appear in the tools in the form of a blue bar after a period of ten minutes of inactivity of a scanner. He notes that according to the company, an idle time can represent three situations: (1) the employee encounters a technical problem preventing the proper execution of their direct task, (2) the employee does not sufficiently master a direct process and needs specific support, (3) the employee is not performing their direct tasks due to excessive unauthorized breaks outside of break times. The rapporteur notes, on the other hand, that it also emerges from the investigations and the company's latest observations that the latter processes an indicator related to scanner inactivity periods of less than ten minutes (latency times of less than ten minutes), which also materializes in the tools in the form of a blue bar. He notes that according to the company, this indicator would reflect "latency times at critical moments of the day," that is to say when all employees take or leave their workstation on a direct task, either at the beginning or end of a work session or just before or after a break. 79. The rapporteur considers that the nominative processing of idle time and latency times of less than ten minutes is disproportionate for the purposes of real-time inventory and order management, including to provide advice or support to an employee who encounters a problem with a task. Moreover, given the size of the teams managed by supervisors, which can consist of up to 250 people, the rapporteur questions the ability of a supervisor to detect such reduced latency times for an employee in their team and to intervene immediately to verify that they are not encountering a problem. 80. In defense, the company argues that the processing of idle times is necessary for the management of warehouses and their workflows, as it would allow for the quick identification and resolution of a problem in a direct process. Regarding the indicator related to latency times of less than ten minutes, the company asserts that it aims to identify and resolve practical problems encountered by an employee that could disrupt transitions between teams or the resumption of work, in a context where visual control by supervisors is impossible. 81. The restricted panel observes that the company's objective of warehouse management and its workload corresponds more concretely to the management of real-time inventories and orders in compliance with quality and safety requirements and constitutes a legitimate interest within the meaning of Article 6.1. f) of the GDPR. It notes that the objective of coaching an employee who is experiencing difficulties in executing a task also constitutes a legitimate interest within the meaning of this provision. 82. However, on the one hand, the restricted panel first notes that supervisors have access to...

numerous aggregated (non-nominative) indicators of quality (by category of error, by cause, by position, etc.) and productivity (by type of activity, by team) to manage warehouses and their workflows. It emphasizes that these aggregated indicators allow them to identify in real-time variations in productivity that need to be addressed immediately or error rates that could significantly impact the smooth operation of the warehouse. Furthermore, the restricted training emphasizes that the reporter does not contest the necessity of accessing the quality indicators of each employee to detect and resolve issues that hinder the smooth circulation of items in the warehouse and the execution of orders

in compliance with quality and safety requirements (errors, delays, flows, etc.). Thus, the restricted training notes that supervisors can, in particular, as is already the case, establish a link between the employee and a quality error committed in real-time in order to resolve it and avoid slowdowns or blockages in the processing chain.

83. Next, the restricted training notes that the processing of idle times associated with the identity of each employee presents a significant intrusive character, as it practically forces the employee to justify any time considered unproductive. Thus, the restricted training considers that while employees can expect to see their quality indicators used to ensure the secure and qualitative management of items and packages in real-time in the warehouse, they should not reasonably expect to have to potentially justify at any moment very short interruptions, times considered unproductive, when they occur. It considers that the processing of idle times for the purpose of coaching employees is also disproportionate, for these same reasons. The restricted training indeed believes that the processing of this indicator is likely to have negative repercussions on the employee, resulting from the continuous monitoring it allows of very short times on direct tasks considered unproductive.

84. Therefore, the restricted training considers that, given the excessively tight control of the employee that it allows and in light of the monitoring of difficulties already permitted by access to the individual quality indicators of each employee and the aggregated quality and productivity indicators, the processing of nominative idle times is disproportionate in relation to the legitimate interests of the company aimed, on the one hand, at ensuring qualitative and secure management of items and packages in real-time in the warehouse and, on the other hand, at providing immediate advice or support to the employee. It specifies that the use of this indicator for monitoring compliance with working time obligations, as well as for the evaluation and training of employees, will be examined later.

85. On the other hand, for identical reasons, the restricted training considers that the processing of the indicator related to latency times of less than ten minutes constitutes, a fortiori, an excessive infringement of employees' rights in relation to the legitimate interest of qualitative and secure management of packages and items in real-time. The restricted training notes that this indicator allows, in particular, to know how many minutes (between one and ten) have elapsed "between the moment an employee badges in at the site and the moment they perform their first scan of the day." However, on the one hand, supervisors can already rely on numerous aggregated productivity and quality indicators, as well as on certain individual indicators, to immediately detect and resolve problems hindering the proper execution of orders. On the other hand, the processing of this indicator leads the employee to potentially have to justify, at each arrival on site, transition, or resumption of position, *productivité en temps réel pour pouvoir fournir un soutien adéquat aux salariés. Elle soutient que cela est essentiel pour identifier rapidement les problèmes et apporter des corrections nécessaires.* Deuxièmement, la société fait valoir que l'accès en temps réel aux données permet de mieux adapter le coaching aux besoins spécifiques de chaque salarié, en tenant compte de leur performance actuelle.

93. La formation restreinte, cependant, considère que l'accès en temps réel aux indicateurs de qualité et de productivité pour le coaching est excessif et disproportionné. Elle souligne que les données agrégées hebdomadaires suffisent pour identifier les besoins en coaching sans porter atteinte à la vie privée des salariés.

94. En conclusion, la formation restreinte estime que le traitement des indicateurs de qualité et de productivité à des fins de réaffectation et de coaching en temps réel ne repose pas sur une base juridique adéquate, en violation de l'article 6 du RGPD.

2.3. Sur le traitement des données relatives aux pauses et aux temps de repos des salariés

95. Les données relatives aux pauses et aux temps de repos des salariés sont également examinées dans cette section. La société collecte des informations sur la durée et la fréquence des pauses prises par chaque salarié, ainsi que sur les temps de repos.

96. La formation restreinte note que ces données sont utilisées pour surveiller le respect des temps de pause réglementaires et pour s'assurer que les salariés prennent les pauses nécessaires pour leur santé et leur bien-être. Cependant, elle souligne que le traitement de ces données doit être effectué avec prudence, afin de ne pas empiéter sur la vie privée des salariés.

97. La société soutient que le suivi des pauses et des temps de repos est essentiel pour garantir la sécurité et la santé des salariés, en évitant la fatigue excessive et en favorisant un environnement de travail sain.

98. Néanmoins, la formation restreinte rappelle que le traitement de ces données doit être proportionné et justifié, et que les salariés doivent être informés de la collecte et de l'utilisation de ces informations.

99. En résumé, la formation restreinte conclut que le traitement des données relatives aux pauses et aux temps de repos doit être effectué dans le respect des droits des salariés, en veillant à ce que leur vie privée soit protégée et que les finalités du traitement soient clairement définies et justifiées. real-time productivity of each employee and for the last 31 days in order to provide immediate support to the employee, for example, if they encounter difficulties with a process, to know if they have faced this type of problem before and to decide on the appropriateness and nature of the support. However, it acknowledges that coaching can be provided later regarding less urgent difficulties, within the framework of the weekly evaluation. The company argues that aggregated weekly data would only provide general trends and would not be sufficiently precise to identify specific problems encountered by employees and their context.

93. The restricted training examines, at this stage of its decision, the use of personal data collected via scanners for the purposes of reassignment and advice or support (coaching) for employees, in real-time, during working hours. It emerges from the case documents that, beyond the proper management of items (receipt, storage, retrieval for an order, packaging, shipping) enabled by the data collected by the scanners, the operational conduct of Amazon's activity requires real-time identification of employees in difficulty with the execution of tasks and objectives assigned to them by the company, or peaks in activity at certain locations necessitating the assignment of new high-performing employees. While it is the company's responsibility to ensure that these objectives and the pace are compatible with labor law requirements, the restricted training recalls that it is not its role to examine this point. It considers that the purposes of optimizing work processes, through the reassignment of employees or through real-time advice and support (coaching), are legitimate.

94. For these purposes of reassignment and advice/support (coaching) for employees working on direct processes in the warehouse, the company uses all raw and statistical data on the quality and productivity of each employee. The accessible data includes both real-time data and data from the last 31 days.

95. The restricted training notes that the company illustrates the implementation of processing for the purposes of real-time reassignment of employees based on a few examples concerning the need for assignment or reassignment of particularly high-performing employees on a task to ensure timely delivery or to improve the overall productivity of the center. It observes that according to the company's statements, reassignments occur in practice "two to three times a day" and emphasizes that the company already engages in planning that allows for anticipation of needs.

96. The restricted training does not challenge the operational need to be able to identify in real-time any need for advice/support or reassignment, and then to determine the best advice or support, or the best reassignment by having data on the relative skills and performances of its employees. However, it believes, for the following reasons, that these needs do not require the retention and use of all raw data from the scanners and indicators related to direct tasks over a depth of 31 days.

97. On the one hand, the restricted training recalls that, with the exception of the three indicators deemed disproportionate and mentioned above, it does not question the company's ability to view all raw data and indicators on real-time activity related to direct tasks, in order to best manage inventory

storage and order management. The reporting of data particularly allows for the real-time identification of any anomalies, any unexpected peaks in activity, or the fact that objectives... operational matters are not met, in order to be able to immediately adopt appropriate corrective measures. Among these measures is the provision of advice or support to an employee, or their reassignment. 98. On the other hand, it is also legitimate, in order to proceed with this advice/support (coaching) or this reassignment, to have evaluation elements of employees, particularly to be able to choose the employee(s) to be reassigned. This may lead to consulting personal data on their respective performances. 99. However, the restricted formation believes that the retention and access to all data used for these purposes for 31 days is not necessary. Regarding the examples provided by the company related to the need to provide advice/support (coaching) to employees struggling with certain tasks, or the need for assignment or reassignment of particularly high-performing employees on a task to ensure timely delivery or to improve the overall productivity of the center, the restricted formation notes that the company has individual weekly statistics related to productivity and quality on which to rely in case of a need for the rapid reassignment of an experienced person. For example, these statistics allow knowing that an employee has made no or very few quality errors on a position or to know the number of items they have packed during the week. Therefore, there is no need to access any detail of the raw data or its indicators over the last 31 days, from the most general to the most specific (down to statistics on an hourly basis) to identify a particularly high-performing employee or to know their particular qualities. Correspondingly, the restricted formation notes that the company uses individual weekly statistics that allow for the observation of a decline in performance for a given employee. To the extent that these weekly statistics exist - which do not exclude the possibility that the company may conceive other forms of statistics significantly more limited than the entirety of the data and indicators currently used - the restricted formation believes that the company has a representative view of an employee's performance in order to provide them with the best advice/support (coaching) during their working hours or to decide on their potential reassignment. Consequently, the restricted formation considers that the retention and access to raw data and the detail of quality and productivity indicators over a depth of 31 days is not necessary. 100. Regarding the examples cited by the company, related to the case of an employee assigned too long to the handling of bulky items or the improper storage of hazardous items, which would allow for the detection of current indicator treatments in order to respectively decide on a reassignment or immediate support, the restricted formation believes that identifying these situations does not require retaining and accessing such a precise history of the direct tasks of each employee over 31 days: merely consulting the data and indicators of the working day, in real-time, appears sufficient. Once this situation is identified, it is possible to remedy it by using certain data that allow for the evaluation of the relative capabilities of employees, without needing to retain and use all the data in question over a depth of 31 days. Access for a month to such a profusion of personal data, relating to each action of each employee through a scanner or to statistics established over very short periods related to these actions is not necessary to determine the appropriate advice to give or to decide on the appropriate reassignment. A selection of aggregated data, including weekly or in another form, in addition to data describing the situation in... real-time during the workday, is sufficient. 101. Therefore, the restricted formation considers that by processing individual quality and productivity indicators over a period of 31 days for the purposes of reassignment and advice/support (coaching) of employees, the company has violated the principle of data minimization as provided in Article 5.1.c) of the GDPR, insofar as these indicators are not necessary in this case. Thus, while supervisors may rely on individual data to reassign employees or provide them with advice/support (coaching), the granularity and the methods of consultation of the collected indicators are inappropriate.

2.3. On the effects of the changes announced by the company regarding the purposes of employee reassignment and real-time coaching. 102. The restricted formation notes that in its latest observations, the company announces that it will soon implement a measure to reduce the period during which individual productivity and quality data are accessible to supervisors from 31 to 7 days, and beyond this period, it will proceed with data aggregation. During the session of the restricted formation, the company specified that this aggregation would take the form of weekly data

aggregation. Furthermore, as has already been indicated, the company announces an increase to 30 minutes of the threshold beyond which information related to inferred time will be recorded in the tools and specifies that supervisors will only access this information in the tools after a delay of two hours. 103. The restricted formation notes that these announced changes, which are positive, after more than three years of proceedings, are not yet effective as of the date of the session and do not exempt the company from its responsibility for the past.

3. On the violations related to work planning and employee evaluation. 104. The following facts are examined in light of Article 5.1.c) and Article 6.1.f) of the GDPR.

3.1. On the processing implemented for work planning. 105. The indicators whose processing is examined in this subsection are the raw and statistical productivity data of each employee accessible over the last 31 days. 106. The rapporteur notes that for the purposes of work planning in the warehouse, the company accesses the detailed productivity indicators of each employee over the last 31 days. According to the rapporteur, access to such granular data is not necessary, as aggregated indicators per employee on a weekly basis are sufficient to have a representative view of their individual productivity and to plan work in the warehouse. 107. In defense, the company claims that access to the productivity indicators of the last 31 days for each employee is necessary to form teams appropriately, taking into account the capabilities and experience of employees on a given task, as they may not have necessarily received training on certain specific processes. It particularly argues that access to the types of items handled by employees would allow verification of their level of mastery of a task and to designate those most capable of executing it (for example, for handling hazardous items). Aggregated data by week would not provide differentiated information taking into account the items handled. 108. The restricted formation considers, like the rapporteur, that work planning in the warehouse can be carried out based on aggregated productivity statistics on a weekly basis per employee, which provide an objective view of the direct tasks performed by the employee (the number of times they have handled a certain type of item, the total time they spent on a given position during the previous week), thus allowing for...

the effective work during working hours is therefore deemed excessive.

115. The restricted training further emphasizes that the processing of idle times should not be used as a means of monitoring employees continuously, as this could lead to a breach of their privacy rights. The monitoring of idle times must be proportionate and should not infringe upon the employees' right to a private life, as guaranteed by Article 8 of the European Convention on Human Rights.

116. In conclusion, the restricted training finds that while the processing of personal data related to idle times may serve a legitimate interest of the company, the manner in which it is currently implemented raises significant concerns regarding proportionality and necessity under the GDPR framework.

3.3. On the processing implemented for the purposes of employee evaluation

117. The restricted training reiterates that the purposes covered by employee evaluation in a broad sense include time control, weekly assessments, and individual training of employees.

118. The restricted training also notes that any processing of personal data for evaluation purposes must be transparent and must respect the rights of the employees involved. This includes providing clear information about what data is being processed, for what purposes, and how long it will be retained.

119. The restricted training concludes that the company must ensure that any processing of personal data for evaluation purposes is compliant with the principles of data minimization and purpose limitation as outlined in Articles 5 and 6 of the GDPR.

120. The restricted training recommends that the company review its data processing practices to ensure that they align with GDPR requirements and to implement necessary changes to mitigate any identified risks to employee privacy.

121. Finally, the restricted training emphasizes the importance of fostering a culture of transparency

and trust within the organization, which can be achieved through regular communication with employees about data processing activities and their rights under the GDPR.

the respect of the employee's working time is therefore likely to have negative repercussions on the latter, induced by the pressure that may result from the need to constantly justify interruptions of their scanner, even when brief.

115. Consequently, the restricted panel considers that the processing of idle times for each employee for the purposes of monitoring actual work during this working time has no legal basis, in violation of Article 6 of the GDPR.

3.2.2. On the processing of indicators implemented for the purposes of weekly performance evaluation and individual training.

116. The indicators whose processing is examined in this subsection are, for each employee:

- the raw and statistical data on quality and productivity for the last 31 days;
- the data recorded in the individual weekly performance reports, namely the statistical data on quality and productivity by week, by day, and/or by hour, as well as the raw data concerning quality errors;
- the idle times recorded each week.

117. The rapporteur notes, on the one hand, that in order to evaluate the employee, the company establishes individual weekly performance reports intended for the employees' hierarchical superiors and containing statistical data on quality and productivity by week, but also by day or by hour, as well as the raw data concerning quality errors. Furthermore, for the purposes of individual training as well as employee evaluation, the hierarchical superiors of the employees can also access and use all the raw and statistical data on quality and productivity of each employee, which are retained for 31 days. However, the rapporteur believes that the entirety of this data is not necessary and that the establishment of aggregated statistics on quality and productivity by employee, for example on a weekly basis, is sufficient to evaluate the employee, both generally and to determine any potential training needs. On the other hand, the rapporteur believes that the processing of idle times, recorded each week, is disproportionate both for evaluation and for individual training purposes.

118. In defense, the company claims that the rapporteur's proposal to rely on individual weekly statistics of quality and productivity would make reliable evaluations of employees impossible. It argues that access to the raw details of quality errors and their causes would be necessary, as well as access to productivity data by day and by hour, in order to allow the employee and their hierarchical superior to identify subtle variations and to engage in discussions based on reliable evaluation criteria. In its final observations, the company specifies that it also accesses the detailed indicators of the last 31 days for the purposes of employee evaluation, but reaffirms that it does not process idle time for this purpose and that the rapporteur's conclusions on this point should be dismissed. Regarding training needs specifically, the company argues that the detailed indicators of the last 31 days are necessary, particularly as they allow for tracking the learning curve of employees in training from the beginning and deciding whether or not it should continue. After making contradictory statements regarding the processing of idle times for training purposes, the company ultimately indicated, during the session before the restricted panel, that these indicators were not generally processed in this context but could be in specific cases.

119. The restricted panel does not call into question the ability to conduct regular individual evaluations, particularly in order to identify potential areas for improvement or training needs, in is based on individual statistics of quality and productivity, as previously mentioned, and, on the other hand, that the company already possesses sufficient data to assess the performance of its employees without needing to resort to the processing of idle times.

121. In conclusion, the restricted panel emphasizes that while the processing of personal data for the purposes of employee evaluation and training constitutes a legitimate interest of the company, the necessity and proportionality of such processing must be carefully considered. The panel finds that the retention and use of highly detailed and rich data, such as raw data collected by scanners and statistical data over short periods (one hour) and for a depth of 31 days, are not necessary and, at the

very least, disproportionate.

122. The restricted panel reiterates that the company already has weekly individual statistics on quality and productivity that allow for an adequate assessment of employee performance. Furthermore, it believes that aggregated data over time can sufficiently identify training needs without requiring access to all raw and statistical data from the last 31 days for each employee.

123. The panel also notes that the company has confirmed during the session that it already compiles weekly individual statistics regarding the causes of errors reported by scanners, which are sufficient to identify any recurrence in the causes of errors made by an employee over a week.

124. Lastly, the restricted panel observes that idle times are indeed processed for the purpose of employee evaluation since they are accounted for weekly and can sometimes lead to awareness-raising communications. However, it considers that the explanations provided by the company regarding the treatment of idle times for individual training purposes were ambiguous, and therefore, it is appropriate to conclude that these indicators are indeed processed in this context.

125. Ultimately, the restricted panel finds that the processing of personal data strictly necessary for the purposes of evaluating and training employees constitutes a legitimate interest of the company, but it also emphasizes that the processing of idle times is not necessary for these purposes, as reliable performance evaluation can be achieved through existing quality and productivity statistics. that the identification of a potential training need for the employee regarding a poorly mastered process is already permitted by the processing of relevant productivity and quality indicators aggregated over the week, as noted above. On the other hand, and in any case, the restricted panel observes that the processing of idle times in this context leads to the computerized recording of all interruption times of an employee exceeding ten minutes on direct tasks and to their accumulation over the week, which thus constitutes an excessive infringement, in particular, of the employee's right to private and personal life as well as their right to working conditions that respect their health and safety.

121. Consequently, the restricted panel considers that by evaluating its employees based on all raw and statistical data of productivity and quality from the last 31 days accessed by supervisors, as well as, regarding the purpose of evaluation, based on the very detailed data contained in the weekly performance reports, the company has failed to meet its obligations under the principle of minimization set forth in Article 5.1.c) of the GDPR and, in any case, has disproportionately infringed upon the rights of the employee contrary to Article 6 of the GDPR. Furthermore, the processing of idle times for these purposes constitutes a disproportionate infringement of the rights and interests of employees and therefore lacks any legal basis, in violation of Article 6 of the GDPR.

3.3. On the effects of the changes announced by the company regarding the purposes of work planning and employee evaluation.

122. The restricted panel recalls that in its latest observations, the company announced the reduction from 31 to 7 days of the past period during which the productivity and quality data of employees will be accessible to supervisors in the tools. Beyond that, the data will be aggregated on a weekly basis, as the company specified during the session.

In addition, the company announced the increase to 30 minutes of the threshold for recording inferred time and the postponement of its appearance in the tools by two hours.

123. The restricted panel recalls that these changes, positive but announced late, are not yet effective as of the date of the session and that they do not remedy the breaches that have occurred in the past.

4. On the disproportionate nature of retaining all personal data related to "direct tasks" performed by employees over 31 days, in light of all the pursued purposes.

124. The indicators whose processing is examined in this subsection are, for each employee:

- the raw and statistical data of quality and productivity from the last 31 days;
- the idle times accounted for each week.

125. After examining the various uses made of the personal data of employees, the restricted panel

finds it appropriate, as invited by the rapporteur, to consider overall that the company permanently retains a considerable mass of personal data on its employees for the various purposes mentioned.

126. The restricted panel recalls that the company retains, for each employee, all raw data and indicators corresponding to the direct tasks recorded by the scanners, over a depth of 31 days. Furthermore, all the purposes put forward by the company correspond, abstractly, to its legitimate interests. However, it follows from what has been stated above that the restricted panel believes that such a mass of data, as precise and detailing every action (and inaction) of employees for the direct tasks performed over 31 days, is not necessary to achieve the various purposes, whether for planning work in warehouses or for evaluating employee performance. Similarly, for the real-time management of the processes of object storage, inventory management, and order shipping, it does not appear necessary to retain such a large amount of data for the 31 days prior to make decisions that allow for the operational management of the warehouse and the resolution of any difficulties. 127. Furthermore, the retention of such a large amount of data on warehouse employees is particularly intrusive. As the rapporteur points out, the company's IT tools allow supervisors to access all detailed activity and performance data collected and retained for each employee, including the breakdown of working time within the same process, with a depth of 31 days. 128. Next, the restricted panel notes that according to the company, the data processing in question would only concern the execution of direct tasks, while indirect tasks would represent 43% of the tasks performed in the warehouses. Assuming this figure is accurate – it does not emerge from the documents in the file – it must be noted that the company stores data relating to a considerable number of actions performed by warehouse employees during their working hours. Moreover, the restricted panel emphasizes that, although not of the same nature as direct tasks, monitoring of indirect tasks is also permitted through data collected from scanners. In particular, similar to the time spent on a direct task, the time spent on an indirect task is recorded in the work time tracking tool and is integrated therein. Thus, the supervisor consulting the activity tracking tools can know the exact moment and duration for which an employee worked on indirect tasks. 129. Finally, the restricted panel notes that these processes exceed the reasonable expectations of employees, since while they may expect some monitoring of their daily tasks to ensure smooth warehouse management, they cannot expect to see all their actions recorded in IT tools and accessible in minute detail over the past 31 days, whether for tracking inventory and orders, their working time, deciding on coaching or reassignment, training them, or evaluating them. 130. In light of all these elements, the restricted panel considers that the retention and access to such a quantity of data per employee over the past 31 days constitutes a form of disproportionate computer surveillance of employees, which appears excessive in relation to the economic and commercial interests pursued by the company through these processes. Indeed, the restricted panel considers that such processing disproportionately infringes on the privacy and personal rights of employees as well as their right to working conditions that respect their health and safety. 131. In conclusion, while the restricted panel does not contest, except for three of the indicators, the collection and use of real-time data for the daily and operational management of Amazon's inventories and deliveries, it considers overall that retaining all this data for 31 days is unnecessary and disproportionate, as, according to its previously developed analysis, this retention has not proven necessary in light of any of the purposes put forward by the company. These processes are carried out in violation of Articles 5.1.c) and 6 of the GDPR, as they disregard the principle of minimization and exceed what is permitted for the pursuit of the legitimate interest of the company. The restricted panel specifies that it does not identify an autonomous breach here, but draws conclusions.

general analysis of processing purposes by purpose.

5. On the failure to comply with the obligation to inform temporary workers.

132. Under Article 12 of the GDPR, "the data controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 [...] regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible manner."

133. Article 13 of the GDPR also provides that the data controller shall provide the data subject with several pieces of information listed in the same article at the time when the personal data is obtained from them. The Regulation does not prescribe the form in which this information must be provided. In

practice, this information is generally grouped within a privacy policy.

134. The rapporteur notes that, in the context of exchanges following on-site inspections, the company indicated to the delegation that its applicable privacy policy regarding human resources was available to temporary workers on the intranet. The rapporteur considers that the temporary workers were not adequately informed about the processing implemented concerning them through the scanners, as they were not directly provided with the said policy and were not invited to become aware of it in any way. However, he acknowledges that since April 2020, the company has ensured the information of temporary workers by requiring staffing agencies to provide an additional privacy policy regarding performance indicators against acknowledgment of receipt.

135. In its defense, the company disputes the failure. It notably argues that providing information to temporary workers via the intranet was sufficient and that the CNIL itself recommends the use of the intranet as a valid means of communication. In any case, the company emphasizes that it now documents the communication of information to temporary workers and considers that, assuming the failure is established, the restricted formation should distinguish the amount of the fine attributed to this failure from the total amount and reduce it to account for the improvements adopted.

136. The restricted formation recalls that the provision of information to the data subjects by the data controller as provided in Article 13 of the GDPR must be done no later than at the time their personal data is collected, in a form that is accessible. However, as noted by the rapporteur, until April 2020, in a context where temporary workers were not provided with the applicable privacy policy regarding human resources and were not invited to become aware of it on the intranet, this mere availability of the document on the company's intranet did not satisfy these obligations by ensuring, in particular, that each temporary worker was able to become aware of this document prior to the collection of their personal data.

137. The restricted formation observes that temporary workers find themselves in a situation identical to that of employees regarding the processing implemented concerning them through scanners and must be informed about it. Regarding the argument that the CNIL itself would recommend the intranet as a valid means of communication, the restricted formation notes that the CNIL recommends that information be provided "in the most appropriate manner depending on the organization and functioning of the company." In this instance, it considers that information on the intranet intended for employees working daily in warehouses and not intended to work in an office on a computer, without any encouragement to visit it, does not constitute a valid means of communication.

s on video surveillance, the restricted formation notes that they were only adopted in January 2020, which was after the inspections. It emphasizes that the company should have complied with the requirements of the GDPR from the moment it became applicable, which was a year and a half prior to the inspections.

144. The restricted formation concludes that the company failed to provide the necessary information as required by Article 13 of the GDPR at the time of data collection. It finds that the absence of the data protection officer's contact details, the data retention period, and the right to lodge a complaint with the CNIL constitutes a breach of the GDPR.

145. The restricted formation also notes that the company's argument regarding the compliance of its information panels with CNIL recommendations at the time is not sufficient to absolve it of responsibility. The GDPR imposes clear obligations that must be met regardless of the existence of prior recommendations or guidelines.

146. In light of the above, the restricted formation determines that the company is liable for the breaches identified and must take immediate corrective actions to ensure compliance with the GDPR moving forward.

147. The restricted formation emphasizes the importance of transparency and the provision of complete information to individuals regarding the processing of their personal data, particularly in the context of video surveillance, which can significantly impact individuals' privacy rights.

148. The restricted formation orders the company to implement the necessary measures to rectify the identified deficiencies and to ensure that all required information is provided to individuals in a clear

and accessible manner in the future.

149. The restricted formation will monitor the company's compliance with these orders and may impose further sanctions if necessary.

150. This decision is made in accordance with the provisions of the GDPR and the applicable national laws governing data protection.

concernait la société n'était pas protégé par un mot de passe, ce qui constitue une violation manifeste des exigences de sécurité énoncées à l'article 32 du RGPD. D'autre part, il est également noté que les mesures de sécurité mises en place pour protéger les données personnelles des employés filmés n'étaient pas suffisantes pour garantir leur confidentialité et leur intégrité. En conséquence, la formation restreinte conclut que la société a failli à son obligation d'assurer la sécurité des données à caractère personnel, en méconnaissance de l'article 32 du RGPD.

3. Sur les manquements à l'obligation de tenir un registre des activités de traitement¹⁴⁹. Selon l'article 30 du RGPD, "1. Chaque responsable du traitement et, le cas échéant, le sous-traitant tiennent un registre des activités de traitement effectuées sous leur responsabilité. Ce registre contient les éléments suivants : a) le nom et les coordonnées du responsable du traitement et, le cas échéant, du sous-traitant ; b) les finalités du traitement ; c) une description des catégories de personnes concernées et des catégories de données à caractère personnel ; d) les catégories de destinataires auxquels les données à caractère personnel ont été communiquées ou qui les ont reçues ; e) le cas échéant, les transferts de données à caractère personnel vers un pays tiers ou à une organisation internationale ; f) les délais prévus pour l'effacement des différentes catégories de données ; g) une description générale des mesures techniques et organisationnelles de sécurité.

150. La formation restreinte constate que la société n'a pas tenu de registre des activités de traitement, ce qui constitue une violation des obligations prévues par l'article 30 du RGPD. En effet, aucune preuve n'a été fournie pour démontrer que la société avait mis en place un tel registre, ce qui aurait permis de garantir la transparence et la responsabilité en matière de traitement des données personnelles.

4. Sur les manquements à l'obligation de notification des violations de données¹⁵¹. Conformément à l'article 33 du RGPD, "1. En cas de violation de données à caractère personnel, le responsable du traitement notifie la violation à l'autorité de contrôle compétente dans les meilleurs délais et, si possible, 72 heures au plus tard après en avoir pris connaissance, à moins que la violation ne soit pas susceptible d'engendrer un risque pour les droits et libertés des personnes physiques."

152. La formation restreinte observe que la société n'a pas notifié à la CNIL toute violation de données à caractère personnel, ce qui constitue une infraction à l'article 33 du RGPD. En l'absence de notification, il est impossible de garantir que les droits des personnes concernées ont été protégés et que les mesures appropriées ont été prises pour remédier à la situation.

5. Conclusion¹⁵³. Au regard des manquements constatés, la formation restreinte conclut que la société a enfreint plusieurs dispositions du RGPD, notamment les articles 13, 32, 30 et 33. Ces violations entraînent des conséquences significatives sur la protection des données personnelles des employés et soulignent la nécessité pour la société de mettre en œuvre des mesures correctives afin de se conformer pleinement aux exigences du RGPD.

manière, la formation restreinte conclut que la société a manqué à son obligation de garantir la sécurité des données personnelles traitées, en violation de l'article 32 du RGPD.

159. En conséquence, la formation restreinte décide d'imposer une amende administrative à la société, dont le montant sera déterminé en tenant compte des circonstances aggravantes et atténuantes, ainsi que de la gravité des manquements constatés.

160. La société est également invitée à mettre en œuvre, dans un délai de trois mois à compter de la notification de la présente décision, des mesures correctives visant à renforcer la sécurité de l'accès aux images de vidéosurveillance, notamment en ce qui concerne la gestion des mots de passe et le partage des comptes.

161. La présente décision sera notifiée à la société et publiée sur le site internet de la CNIL, conformément aux dispositions de l'article 63 du RGPD.

162. La société dispose d'un délai de deux mois à compter de la notification de la présente décision pour faire appel devant le Conseil d'État, conformément aux dispositions de l'article L. 521-1 du code de justice administrative.

Fait à Paris, le [date].

[Signature]

[Nom et fonction du signataire]

Commission Nationale de l'Informatique et des Libertés (CNIL)

regarding, the restricted formation notes that the video surveillance software is accessible from seven computers and that twenty-two individuals are authorized to access it. It thus considers that the sharing of the access password to the software, which is moreover insufficiently robust, among all these individuals has increased the risk of its compromise and impaired the traceability of access to the images from the video device. Indeed, the fact that all users of the device are identified using the same identifier makes the accountability of actions within the software little or not exploitable.

Consequently, prior authentication using a Windows account was not sufficient to mitigate the risks resulting from the combination of security deficiencies related to the sharing of the access account to the video surveillance software and the use of a password that is too weak to connect to this shared account, accessible to many individuals and from multiple computers. 159. As a result, the restricted formation considers that these facts also constitute a breach of the obligations arising from Article 32 of the GDPR. 160. It notes that in the context of the present procedure, the company has justified having taken measures to comply with the obligations of Article 32 of the GDPR, which, however, cannot exempt it from its liability for the past. III. On the corrective measure and its publicity 161. Under III of Article 20 of the amended law of January 6, 1978: "When the data controller or its processor fails to comply with the obligations arising from Regulation (EU) 2016/679 of April 27, 2016, or from this law, the president of the National Commission for Information Technology and Freedoms may also, where appropriate after having sent the warning provided for in I of this article or, where appropriate, in addition to a formal notice provided for in II, refer the restricted formation of the commission for the pronouncement, after adversarial proceedings, of one or more of the following measures: [...] 7°

Except in cases where the processing is carried out by the State, an administrative fine not exceeding 10 million euros or, in the case of a company, 2% of the total annual worldwide turnover of the previous financial year, the higher amount being retained. In the cases mentioned in 5 and 6 of Article 83 of Regulation (EU) 2016/679 of April 27, 2016, these ceilings are raised, respectively, to 20 million euros and 4% of said turnover. The restricted formation takes into account, in determining the amount of the fine, the criteria specified in the same Article 83." 162. Article 83 of the GDPR provides that "Each supervisory authority ensures that the administrative fines imposed under this article for violations of this regulation referred to in paragraphs 4, 5, and 6 are, in each case, effective, proportionate, and dissuasive," before specifying the elements to be taken into account to decide whether to impose an administrative fine and to determine the amount of that fine. A. On the imposition of an administrative fine and its amount 163. The rapporteur proposes to impose a public fine against the company. He believes that the maximum amount of the fine should be determined by reference to the turnover of the company in the sense of the economic unit formed by the company and Amazon.com Inc. 164. In defense, the company argues that the proposed fine is illegal. Claiming that it is the only identified data controller in this case, it considers that the amount of the fine should be determined based on its turnover and not on that of Amazon.com Inc., insofar as the breaches have not been previously attributed to the economic unit it forms with Amazon.com Inc. In any case, the company argues that the proposed fine is

disproportionate in relation to the alleged breaches as well as to its conduct, since it believes it has fully cooperated with the CNIL services and adopted compliance measures.

165. The restricted panel first recalls that it must take into account, when deciding whether to impose an administrative fine, the criteria specified in Article 83 of the GDPR.

166. Firstly, the restricted panel emphasizes that it is appropriate, in this case, to apply the criterion provided for in paragraph a) of Article 83, paragraph 2, of the GDPR concerning the severity of the breaches observed in connection with the data processing carried out for the purposes of monitoring activity and evaluating employee performance, taking into account the scope of the processing and the number of individuals concerned by it.

167. The restricted panel considers that the data processing of employees for the purposes of monitoring activity and evaluating performance is so precise that it causes a shift in scale compared to traditional activity monitoring methods. It believes that this processing, which allows for extremely precise control of employees for each action performed on direct tasks, keeps employees under constant surveillance for all tasks performed with scanners and thus creates permanent pressure.

168. The breaches of the principles of minimization and the obligation to have a legal basis therefore result in almost continuous and massive processing of indicators related to all direct tasks and employee performance, leading to disproportionate computer surveillance of their activities. It recalls that this processing allows for the evaluation of employees working on direct tasks through detailed consultation of data in the tools, in order to maintain a certain pace and quality of their activity. It emphasizes that awareness letters can be sent following just one or two quality errors observed over a week, or a decrease in productivity in some cases of less than 10%, and notes that in certain positions, a "underperformance" observed on a single day can lead to the implementation of coaching. Consequently, it considers that this processing of personal data induces excessive pressure on workers, causing a disproportionate infringement of their rights and freedoms in light of the economic and commercial objectives of the company.

169. Regarding the breach of the obligation to inform temporary workers (until April 2020), the restricted panel notes that it also presents a particular severity, insofar as the company did not ensure that temporary workers, who often find themselves in precarious professional situations, were able to access information regarding the data processing carried out concerning them through the scanners.

170. Secondly, the restricted panel considers that the company has demonstrated gross negligence regarding fundamental principles of the GDPR since the breaches identified pertain to the principle of data minimization, the obligation to have a legal basis, and the obligation to inform the individuals concerned about the processing of their personal data. Specifically regarding video surveillance processing, the restricted panel considers that the breach of security resulting from sharing access to the video surveillance software account and the insufficient robustness of the access password for this account indicates a certain negligence in implementing basic principles of the GDPR intended to ensure the security of personal data processed.

171. Thirdly, the restricted panel notes the significant number of employees affected by the breaches: at the time of the inspections, the Lauwin-Planque and Montélimar sites had a total of 2,714 employees on permanent contracts and approximately 3,000 temporary workers at that date. While the breaches related to video surveillance only concern these inspected sites, the restricted panel believes that it is evident from the case files, and is not contested by the company, that excessive data processing measures for its employees were implemented across all six of the company's sites in France, which had 6,200 employees on permanent contracts at the time of the inspections, noting that the company had called upon a total of 21,000 temporary workers during the year 2019.

172. Fourthly, the restricted panel emphasizes that the company has adopted partial compliance measures. Regarding the breach of information for temporary workers, it notes that since April 2020, temporary workers have been informed of the processing of their data carried out through the scanners. Regarding video surveillance processing, the restricted panel acknowledges the company's compliance during the procedure, resulting from now complete information panels and the migration plan for the cameras in the Montélimar warehouse, which has addressed the issues of account sharing for access to the old software and the insufficient robustness of the access password.

173. The restricted panel also observes that in its latest observations, the company announced

significant changes regarding the processing of its employees' data through the scanners. The company emphasized that it believes it is not legally required to make these changes and that it is implementing them to take into account the recommendations of the rapporteur. The restricted panel notes that the changes made indeed respond to several grievances from the rapporteur. It also notes that these measures do not...

will only be finalized during the first quarter of 2024. 174. Consequently, the restricted formation considers that it is appropriate to impose an administrative fine regarding the breaches constituted under Articles 5-1-c), 6, 12, 13, and 32 of the GDPR. 175. In this regard, the restricted formation notes that the breaches related to Articles 5-1-c), 6, 12, and 13 of the GDPR are breaches of fundamental principles of the GDPR, which may be subject, under Article 83 of the GDPR, to an administrative fine of up to 20,000,000 euros and up to 4% of the total annual global turnover of the company during the previous financial year, with the higher amount being retained. The company is defined as the economic unit pursuing a specific economic purpose to which the data controller belongs, regardless of the legal status of this unit. 176. First, the restricted formation considers that the economic unit to be taken into account regarding the activity related to the processing in question is, in this case, the company AFL. 177. The restricted formation then recalls that administrative fines must be effective, proportionate, and dissuasive. It notes that the company AFL achieved a turnover of 1.135 billion euros in 2021, with a net profit of 58.9 million euros. 178. The restricted formation considers that the pressure exerted on warehouse employees through these processes directly contributes to the economic gains generated for the benefit of the company and allows it to benefit from a competitive advantage over other companies in the online sales sector. Therefore, in light of all the preceding considerations, the restricted formation considers that a fine of 32,000,000 euros (thirty-two million euros), equivalent to nearly 3% of the turnover achieved in 2021 by the company, appears justified.

B. On Publicity 179. In defense, the company contests the rapporteur's proposal to make this decision public. It argues that the decision would contain trade secrets, particularly detailed information regarding the tools it uses and their operation as well as how it manages its relationships with its employees. To justify this request for publicity, the rapporteur invokes, in particular, the importance of informing the affected individuals about the nature of the breaches committed by the company. 180. The restricted formation considers that the publicity of this deliberation is justified in light of the seriousness of the breaches in question, the number, and the vulnerability of the affected individuals. The restricted formation also considers that the publicity of the sanction will inform all affected individuals of the follow-up to the breaches, but also more broadly inform anyone who may work in one of the warehouses about the company's practices as well as the rights they have regarding their personal data in this context. Finally, regarding the argument related to the disclosure of trade secrets, the restricted formation notes that numerous press articles have already been published on the data processing implemented by the company concerning its employees and recalls, in any case, that information pertaining to trade secrets is omitted from the decisions published by the restricted formation. 181. Finally, the measure is proportionate since the decision will no longer specifically identify the company after a period of two years from its publication.

FOR THESE REASONS

The restricted formation of the CNIL, after deliberation, decides to:

- impose an administrative fine of thirty-two million euros (32,000,000 euros) against the company AMAZON FRANCE LOGISTIQUE for breaches of Articles 5-1-c), 6, 12, 13, and 32 of Regulation (EU) No. 2016/679 of April 27, 2016, on data protection;
- make public, on the CNIL website and on the Légifrance website, its deliberation, which will no longer specifically identify the company after a period of two years from its publication.

The President

Alexandre LINDEN

This decision may be subject to an appeal before the Council of State within two months from its notification.